



EVENT REPORT

THE IMPLICATIONS OF THE BBNJ AGREEMENT FOR THE GULF OF GUINEA.

**HIGH-LEVEL EXPERT MEETING OF THE
INTERNATIONAL MARITIME SECURITY
WORKING GROUP (IMSWG) –
SEPTEMBER 2026 EDITION**

About The International Maritime Security Working Group (IMSWG) Community

The International Maritime Security Working Group (IMSWG), formed by the Gulf of Guinea Maritime Institute, is the Institute's flagship forum focused on stimulating dialogue and policy innovation aimed at addressing maritime security and safety concerns in the Gulf of Guinea (GoG) region.

The IMSWG forum is notable as a knowledge exchange and research network on regional issues while keeping an eye on the pulse of international perspectives.

Forum Composition

- **Expert Network**
Government, industry, private sector, universities, research institutions and diplomatic community experts in ocean governance.
- **Regional Focus**
Concentrated on Gulf of Guinea maritime security and safety challenges with international perspectives.
- **Policy Innovation**
Develops comprehensive reforms and strategy recommendations for maritime safety development.

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The Gulf of Guinea at a New Threshold

An international legal framework two decades in the making has now taken practical effect for the Gulf of Guinea. The Agreement under the United Nations Convention on the Law of the Sea (UNCLOS) on the Conservation and Sustainable Use of Marine Biological Diversity of Areas Beyond National Jurisdiction, commonly known as the BBNJ Agreement, entered into force in January 2026. For a region whose waters border directly onto the high seas, and whose coastal states depend heavily on shared marine resources for food security, employment, and economic stability, this is not a distant development. Its effects reach into national waters, its institutions the region has yet to fully engage with, and its opportunities, in funding, technology, and capacity building, remain largely untapped.

On 16 September 2026, the Gulf of Guinea Maritime Institute (GoGMI) convened a high-level expert meeting of the International Maritime Security Working Group (IMSWG) to examine what the BBNJ Agreement means for the region. The session was held under the Chatham House Rule, and this report reflects that basis: the discussion and recommendations below are drawn from the session but are not attributed to individual participants by name or institutional affiliation.

Understanding the Agreement

The first presentation framed the Agreement's objective: to ensure the conservation and sustainable use of marine biological diversity in areas beyond national jurisdiction, for the present and the long term, through the relevant provisions of the United Nations Convention on the Law of the Sea and through international cooperation. Under the Convention, areas beyond national jurisdiction comprise the high seas and the Area governed by the International Seabed Authority.

The process traces back to 2003, when the United Nations General Assembly began addressing threats to vulnerable marine ecosystems. Roughly twenty years of negotiation followed before the Agreement was adopted on 19 June 2023. It opened for signature that September and entered into force in January 2026, following Preparatory Commission meetings held between 2025 and 2026. It fills governance gaps left by the Convention itself, including the absence of a definition of marine

biodiversity, and supports Sustainable Development Goal 14 on life below water amid what the presentation called a triple planetary crisis of pollution, biodiversity loss, and climate change. The Agreement runs to 72 articles across 12 parts and two annexes, organised around four core elements: marine genetic resources and benefit sharing; area-based management tools, including marine protected areas; environmental impact assessments; and capacity building and technology transfer.

Its institutional architecture is still forming. The Conference of the Parties is expected to hold its first meeting in January 2027. A Scientific and Technical Body has been discussed but has no nominations to date. The Agreement also establishes an Access and Benefit-Sharing Committee, a Committee for Capacity Building and Transfer of Marine Technology, and an Implementation and Compliance Committee, bodies through which the region's future participation, or absence, will be felt.

Area-Based Management Tools and the Case for a Regional Marine Protected Area

The second presentation turned to how the Agreement translates into protected space at sea. Only 1.6% of the high seas are currently covered by area-based management tools such as marine protected areas, a figure offered as evidence of how much ground remains to be covered, and one with direct bearing on coastal states given that conditions on the high seas affect what happens within exclusive economic zones. Cited as a national example the region can build on.

A recurring theme was the significance of the Particularly Sensitive Sea Area classification. Such a designation triggers protective measures, including rerouting of passage, stricter piloting requirements, enhanced discharge limits, and biofouling controls, and its inclusion on international nautical charts promotes stewardship among mariners worldwide. No, Particularly Sensitive Sea Area currently exists within the Gulf of Guinea, a gap the session suggested the region should close through coordinated advocacy with the International Maritime Organisation. Vulnerable marine ecosystems on the ocean floor, including deep-sea sponges, stony corals, sea pens, sea fans, lace corals, and black corals, were also raised as habitats warranting similar attention. Establishing these tools under Articles 19 through 26 of the Agreement requires consultation, monitoring, and review at every stage.

The background of the entire page is an underwater photograph. It shows a large number of small, bright orange fish, possibly surgeonfish, swimming in clear blue water. On the right side, there is a dark, textured coral reef structure. The lighting is natural, coming from above, creating a sense of depth.

Marine Genetic Resources and the Global Commons

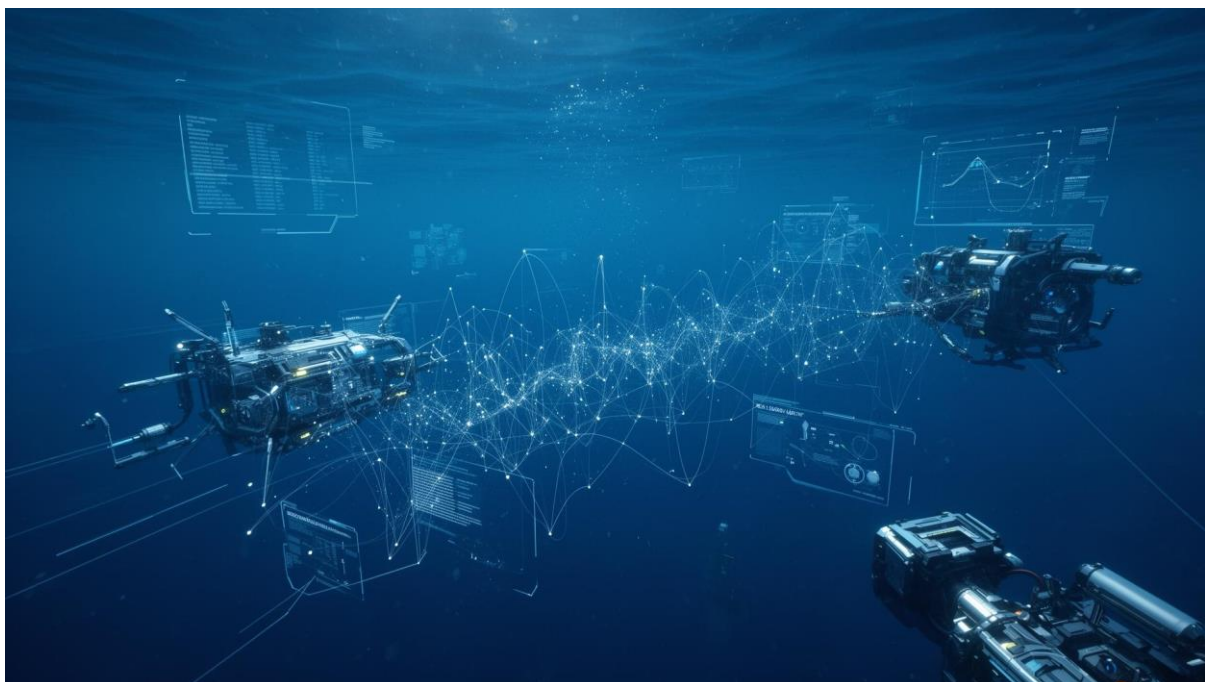
Marine genetic resources are featured as an area of both promise and unresolved fairness. Their applications, as described in the session, range from pharmaceuticals, including omega-3 fatty acid production, to aquaculture, fish meal and oil production, oil spill bioremediation using microbes, hydrogen fuel production, and industrial uses such as steel sheet manufacturing, lubricants and enzyme catalysts for carbon dioxide removal in gas production.

Because these resources lie beyond national jurisdiction, they are part of the global commons rather than the property of any one state. The Agreement responds by establishing a mechanism for fair and equitable benefit sharing, extending to digital sequence information as well as physical samples, so that value generated from the high seas does not accrue only to states with the vessels and laboratories able to reach them.

Capacity Building and the Transfer Challenge

This theme drew the most pointed discussion of the session. Developed states carry an obligation to provide financial, technical, and technological assistance to developing states, but intellectual property rights complicate this in practice: technology is patented, and its transfer must be negotiated and funded, not simply granted. The Intergovernmental Oceanographic Commission of the United Nations Educational, Scientific and Cultural Organisation operates a clearing-house mechanism meant to connect funding requests to sources of support, but progress through it has been limited so far, in part because developing states are not always aware of how to use it.

The BBNJ Agreement's preamble names capacity building and marine technology transfer as essential to its conservation objectives and offers what the session called the first treaty-level definition of marine technology, covering marine science information and data, manuals, guidelines, criteria, standards, computer software, related biotechnology, and technical, scientific, and legal expertise. Yet the underlying infrastructure gap remains stark: the Convention already obliges states and regional bodies to establish national and regional scientific centres, and none has yet been established in the Gulf of Guinea region. The closest example raised was an oceanographic institute in Alexandria, Egypt, which collaborates with the International Seabed Authority on training. The BBNJ Agreement has, at minimum, raised awareness of this gap, even where implementation has not yet followed.



Environmental Impact Assessment and Sectoral Implications

A significant expansion of environmental impact assessment obligations stood out as one of the Agreement's more consequential features. Activities with more than a transitory effect on areas beyond national jurisdiction now require an assessment, and, for the first time, this requirement extends to activities conducted within national jurisdiction whose effects reach areas beyond it, such as offshore oil and gas extraction on a continental shelf. The Scientific and Technical Body is mandated to develop standards and guidelines for screening and monitoring, and the monitoring itself continues even after an activity has been authorised, not just beforehand.

This has direct implications across several sectors. Deep sea minerals, including polymetallic nodules, polymetallic sulphides, and cobalt-rich ferromanganese crusts containing nickel, cobalt, and copper, will face additional environmental obligations under the Agreement alongside the existing framework of the International Seabed Authority. Offshore renewable energy activities, such as wind, will also go through the assessment process to the extent permitted by international law. Shipping, long linked to biodiversity loss, greenhouse gas emissions, underwater noise, invasive species transfer, discharges, and habitat disturbance, is addressed through what the session called a more integrated approach linking decarbonisation and biodiversity: freedom of navigation stays intact, but new environmental obligations apply, particularly around marine protected areas.

Institutional and Jurisdictional Questions for the Region

Discussion after the presentations surfaced questions the region has not yet resolved. Asked which institution should coordinate BBNJ implementation regionally, given overlapping mandates already visible in some states, the session pointed to Ghana's approach as a possible model: lead coordination assigned to the Ministry of Environment, Science and Technology, working across other implicated agencies including the Ghana Maritime Authority, the Fisheries Commission, and the Ghana Shippers' Authority. On existing regional bodies, each was judged as mandate-limited. None, in that assessment, currently has the mandate: the International Commission for the Conservation of Atlantic Tunas, with what was put at approximately 56 contracting states, is restricted to tuna and tuna-related matters; a regional fisheries body covering the Gulf of Guinea is limited to East Africa; and the Fisheries Committee for the West and Central Gulf of Guinea covers only six countries, Benin, Côte d'Ivoire, Ghana, Liberia, Nigeria, and Togo. None, in his

assessment, currently has the mandate to coordinate implementation across the whole region.

On unresolved maritime boundaries and their intersection with high seas governance, including the extended continental shelf applications before the Commission on the Limits of the Continental Shelf from Nigeria, Ghana, and Côte d'Ivoire, discussion turned to the legal position of states that are not party to the Agreement. The presenters agreed that non-party states remain bound by a duty of cooperation and a due regard obligation under the Convention, so non-ratification does not license undermining marine protected areas or conservation measures established by others; this position also holds, it was noted, for states outside the Convention itself under customary international law. On procedural questions, it was clarified that a regional organisation, such as the European Union, can be a party to the Agreement, but individual member states vote, and only states that are themselves parties may vote or nominate candidates to the Agreement's bodies; non-parties attend only as observers.

On whether the region has the scientific and institutional infrastructure to make use of provisions such as marine genetic resources and the clearing-house mechanism, given that existing regional maritime infrastructure has focused mainly on security, piracy, and robbery, and on which partnership models beyond existing arrangements the region should pursue, the session offered precedents worth studying rather than a ready answer: marine protected areas established in parts of the Antarctic, the Antarctic's regional fisheries coordination body, and the OSPAR framework.

Policy Recommendations

The following recommendations were made by the presenters during the session:

- 1.** States that have not yet ratified the BBNJ Agreement should do so. Non-ratifying states remain limited to observer status at the Conference of the Parties and cannot vote or nominate candidates to its bodies, while remaining bound, under the Vienna Convention on the Law of Treaties, not to undermine agreements they have already signed.
- 2.** Gulf of Guinea states should invest in science and data generation to support implementation, and pursue partnerships with relevant organisations, including through funding opportunities such as those offered by the Global Environment Facility.

3. States should establish national and regional scientific centres, as already obliged under the Convention, to build the infrastructure needed to make use of BBNJ provisions such as marine genetic resources and the clearing-house mechanism, rather than relying on infrastructure built primarily for security and anti-piracy purposes.
4. The region should pursue coordinated advocacy, in conjunction with the International Maritime Organisation, for the designation of a Particularly Sensitive Sea Area within the Gulf of Guinea, none currently existing despite the region's ecological significance.
5. Gulf of Guinea states should put forward competent candidates for the Agreement's committees and secretariat structures, to ensure the region is represented in decisions on capacity building, technology transfer, and benefit sharing.
6. Each state should identify or confirm a lead coordinating institution for BBNJ implementation domestically, following models such as Ghana's assignment of this role to its Ministry of Environment, Science and Technology, given that no existing regional body currently has a mandate broad enough to coordinate implementation across the whole region.

Toward a Region Ready to Implement

Asked what would indicate, a year on, that the Gulf of Guinea is becoming ready to implement and shape the BBNJ Agreement, the answer centred on two developments. The first was ratification across all Gulf of Guinea states, described as the foundational step that would strengthen the region's collective voice, ease the process of proposing candidates, and support joint requests for resources. The second was visible movement on capacity building and technology transfer from discussion to practice, through domestication of the treaty at the national level, whether by parliamentary resolution or enabling legislation.

Taken together, the session's discussions point to a region at an early and largely undecided stage of engagement with a framework that already affects it. Legal obligations already apply in some form through customary international law and the duty of cooperation, whether individual states have ratified. What remains open is whether the Gulf of Guinea engages with the Agreement's institutions as a participant helping to shape outcomes, or continues, as several of the session's own examples suggested, as a region whose infrastructure and coordination have not yet caught up with its stated priorities.



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